

Court No. - 39

Case :- WRIT - C No. - 65169 of 2015

Petitioner :- Smt. Shashi Kala

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Pankaj Goswami

Counsel for Respondent :- C.S.C., Ashutosh
Srivastava, Baleshwar Chaturvedi

Hon'ble Dilip Gupta, J.

Hon'ble Mukhtar Ahmad, J.

The petitioner disputes the electricity bills that have been raised by the Torrent Power Limited, Agra. Though, it has been submitted by learned counsel for the petitioner that the petitioner is not in arrears because the amount indicated in the bills have already been paid but Sri Baleshwar Chaturvedi and Sri Ashutosh Srivastava, learned counsel appearing for the respondent-Power Company state that the petitioner has a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

Clause 6.5(b) of the Code provides that if a consumer disputes the accuracy of any bill, he may either make the payment under protest or file a complaint with the competent authority which complaint shall be decided within seven days.

The petitioner, therefore, can avail of this remedy provided under Clause 6.5(b) of the Code. We, therefore, dispose of this petition with the observation that in case the petitioner invokes the provisions of Clause 6.5 of the Code, an appropriate decision shall be taken expeditiously.

Order Date :- 2.12.2015

GS

(Dilip Gupta, J.)

(Mukhtar Ahmad, J.)